CLOUD SECURITY · EU DATA ACT

# THE CLOUD EXIT PLAN

How European Small Businesses Can **Switch Cloud Providers** Without Losing Their **Data, Money or Control**

EU DATA ACT | 30-DAY PLAN | CONTRACTS | GDPR

ZIRLANDIA MILKOVIC

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**The Cloud Exit Plan**
How European Small Businesses Can Switch Cloud Providers Without Losing Their Data, Money or Control

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This book is practical guidance, not legal, security or data-protection advice. All examples, businesses and people in worked scenarios are fictional. Legal references reflect the research cut-off date and should be checked against current texts.

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# Educational Disclaimer

This book is practical, educational guidance for small-business owners, freelancers, SaaS customers and the people who support them. It is not legal, financial, tax, security-engineering or procurement advice, and it does not create a professional relationship between the author and the reader.

The EU Data Act, the guidance around it and the cloud market are all moving. Some rules described here are new and untested in practice, a number of details depend on how a regulator or court reads them, and a proposal known as the Digital Omnibus may change parts of the picture. Before you rely on anything here for a decision that matters, read the current text of the law, the terms of your own contract and the latest guidance of your national authority, or ask a qualified adviser.

Following the steps in this book can make leaving a cloud provider much safer and cheaper. It cannot guarantee a painless migration, and no checklist can promise that nothing will be lost.

Every business, person and migration in a worked example is **fictional** and labelled as such. Real laws, dates and statements are sourced in the notes at the back, together with an honest list of what the author could not verify.

# Introduction: The Door You Never Looked For

Marta runs a four-person design studio in Lisbon. Four years ago she put everything in the cloud: client files, invoices, a shared calendar, a project tool, a small customer database. It was quick, cheap and, in the first year, wonderful. She has not thought about it since.

Last spring her provider changed its pricing. The plan she used rose by a third. She asked herself a simple question: *could I move?* And then a second one, much less comfortable: *if I decided tomorrow, how would I?*

She could not answer either. She did not know which of her files could be exported, or in what format. She did not know what her contract said about ending it. She did not know whether the provider would keep her data afterwards, or delete it, or charge her to hand it back. She had a vague feeling that leaving would be painful and expensive, so she did what most people do: she stayed.

That feeling has a name. It is **vendor lock-in**, and for small businesses it is rarely dramatic. Nobody is held hostage. It works the other way round: the cost, effort and risk of leaving slowly rise until staying is the only sensible option, whatever the provider does next to the price, the terms or the service.

This book is about changing that, and the timing is unusually good. The EU Data Act has introduced rules designed to make switching between cloud and other data-processing services genuinely possible: a maximum notice period, a maximum transition period, a right to get your data back, clear contract terms, and, from **12 January 2027**, an end to charges for the switching process itself.[1][2] That date is the hook for this book, but it is not the whole story. A legal right to switch is not a plan to switch. The Act can oblige a provider to help you. It cannot choose your new service, clean up your data, retrain your team or notice that your accountant's invoices depend on a plug-in that exists in only one place.

That part is on your side of the table. It is what this book calls **the customer-side guide**: what you should know, decide, ask for and do so that you stay in control, whether you ever leave or not.

You will not be told to leave your cloud provider. Most small businesses should not, and many providers are good. The goal is smaller and more useful: **to be able to leave**, calmly, on your timetable, with your data and your money intact. A business that can leave negotiates better, chooses better and sleeps better.

> **The rule.** You do not own your cloud exit until you have tested it. A plan on paper that has never exported a single file is a hope, not a plan.

The book follows the shape of an exit. Chapters 1 and 2 explain lock-in and what really happens when you leave. Chapter 3 covers your rights under the Data Act. Chapters 4 to 6 deal with the three things that go wrong most often: formats, contracts and personal data. Chapter 7 gives you a practical 30-day plan you can start on Monday. The appendices hold the checklists, a switching letter and a tracker.

## Who This Book Is For

This book is written for people who buy cloud and software services for a business but are not cloud engineers:

- **Owners and managers of small businesses** in the EU and Europe-facing businesses elsewhere, with between one and about fifty people.
- **Freelancers and consultants** whose whole working life sits in a handful of online tools.
- **SaaS customers** of every kind: accounting, CRM, e-commerce, project management, email, website hosting, file storage and backup.
- **Office managers, operations leads and the "accidental IT person"** who has been given responsibility for it all and a login or two.
- **Advisers**, such as accountants, consultants and IT freelancers, who are asked "what happens if we leave?"

You do not need technical knowledge. Where a technical term matters it is explained in plain language, and there is a glossary at the back. If you already run serious infrastructure with a dedicated team, you will find the contract, rights and personal-data chapters useful, but the engineering detail here is deliberately light.

A word on scope. The book is about **customer-side** exit planning for ordinary business services. It does not cover regulated sectors in depth. Financial entities, for example, have their own detailed rules on outsourcing and exit planning, and need specialist advice.[8]

## How to Use This Book

You can read the book in order, which gives the full story, or jump to what you need.

- **Short on time?** Do the Ten-Minute Exit Readiness Check on the next page, then go to Chapter 7 and Appendix F.
- **About to renew or sign?** Read Chapter 5 and use Appendix C before you commit to anything.
- **Already planning to leave?** Read Chapters 2, 3 and 7 first, then work through Appendices D and E.
- **Worried about customer data?** Read Chapter 6, then use Appendix E.

Three conventions help. A dark box headed **The rule** is the one idea to remember from a chapter. Checklists use empty boxes you can tick. Tables and worksheets are meant to be filled in, on paper or on screen.

Throughout the book, "provider" means the company you pay for a cloud or online service, and "service" means anything you use online instead of installing and running yourself. If a word is unfamiliar, check the glossary.

# The Ten-Minute Exit Readiness Check

Answer yes or no. Be honest; nobody is marking this.

1. Can you list, from memory or one document, every cloud service your business depends on?
2. Do you know where your most important business data lives, and in which country?
3. Have you ever exported your data from your main provider, as a test, to a file you opened yourself?
4. Do you know your provider's notice period and what happens to your data when the contract ends?
5. Is any of your contract fixed-term, with a penalty or loss of discount if you leave early?
6. Do you rely on a feature, add-on or automation that works only with this one provider?

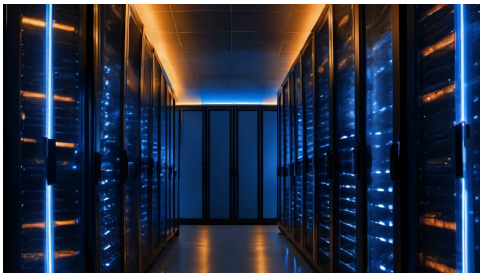
7. Does your provider hold the only copy of any important data?
8. Are logins, single sign-on or email for your business tied to one provider's identity system?
9. Does your team know who is responsible for the exit if the provider fails, is sold or changes the terms?
0. Do you have a signed data-processing agreement with each provider that holds personal data?

**Scoring.** Count your **no** answers to questions 1, 2, 3, 4, 9 and 10. Then add one for each **yes** to questions 5, 6, 7 and 8.

- **0 to 2:** strong position. Use the book to test and document what you have.
- **3 to 5:** typical. Chapters 4, 5 and 6 contain several quick wins.
- **6 to 10:** worth a focused month. Go straight to Chapter 7 and Appendix F.

CHAPTER 1

# Understanding Cloud Vendor Lock-In



A data centre aisle and a storm cloud: the place most small businesses never see

Ask a small-business owner where their data is and the honest answer is usually "in the cloud". Ask which cloud, in which country, under which contract and how they would get it out, and the conversation slows down. That gap between *using* a service and *being able to leave* it is what this chapter is about.

## What lock-in really is

**Vendor lock-in** means the cost, effort or risk of switching to another provider is high enough that you stay even when staying is no longer the best choice. Notice what the definition leaves out. Lock-in is not a crime and it is not always a trick. Often it is a side effect of a service being good: the more deeply a tool fits your work, the harder it is to replace.

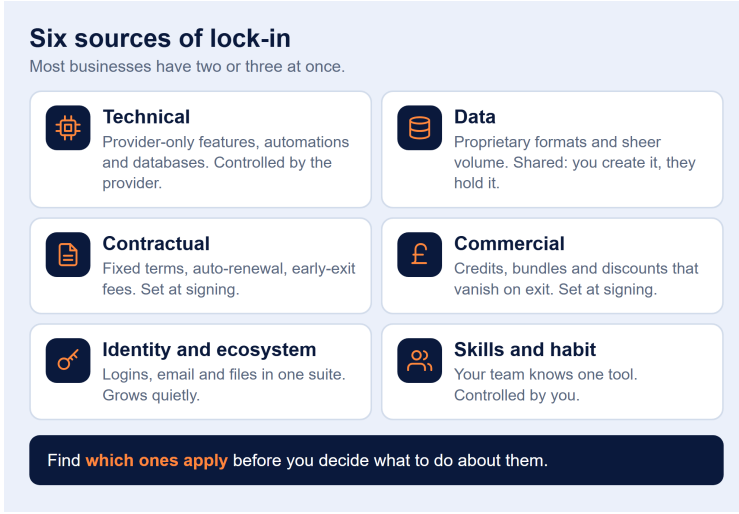
It becomes a problem when three things combine: you depend on the service, switching is hard, and you have not noticed. Under those conditions, the provider can raise prices, change terms or retire features, and your realistic options are to accept or to suffer.

> **A useful test.** Imagine your provider doubled its price next month. Could you leave within a quarter without losing data, customers or sleep? If the honest answer is no, you are locked in, whatever the brochure says.

One open link: lock-in is made of small, ordinary connections

## Six kinds of lock-in

Lock-in has more than one source, and most businesses are locked in by two or three at once. Knowing which ones apply tells you where to put effort.




Six sources of lock-in, and who usually controls each

**1. Technical lock-in.** You use features that exist only at one provider: a proprietary database, a custom workflow builder, a specific automation language. The data may be exportable, but the *behaviour* is not. A

spreadsheet of customers moves easily; a chain of twenty automations that sends invoices, updates stock and emails the courier does not.

**2. Data lock-in.** Your data is in a format that only the provider's software reads well, or it is simply very large. Volume matters: moving a few gigabytes is an afternoon, moving several terabytes is a project with a cost and a clock.

**3. Contractual lock-in.** Fixed terms, auto-renewals, early-termination fees, volume discounts that vanish if you leave, and notice periods that must be given months ahead. The contract is where most surprises hide, and Chapter 5 is devoted to it.

**4. Commercial lock-in.** Credits, bundles and discounts that make staying cheap and leaving expensive. A provider giving you a year of free credits is not being generous for its own sake. It is buying your dependency.

**5. Identity and ecosystem lock-in.** Your team logs in with the provider's account system. Your email, calendar, documents and chat all sit in one suite. Leaving one product means leaving, or rebuilding, the lot. This is the lock-in people notice last and regret most.

**6. Skills and habit lock-in.** Your team knows one interface. Your freelancer knows one setup. Your processes were written around one product's quirks. Retraining is a real cost, even if it never appears on an invoice.

## How lock-in builds up without anyone deciding it

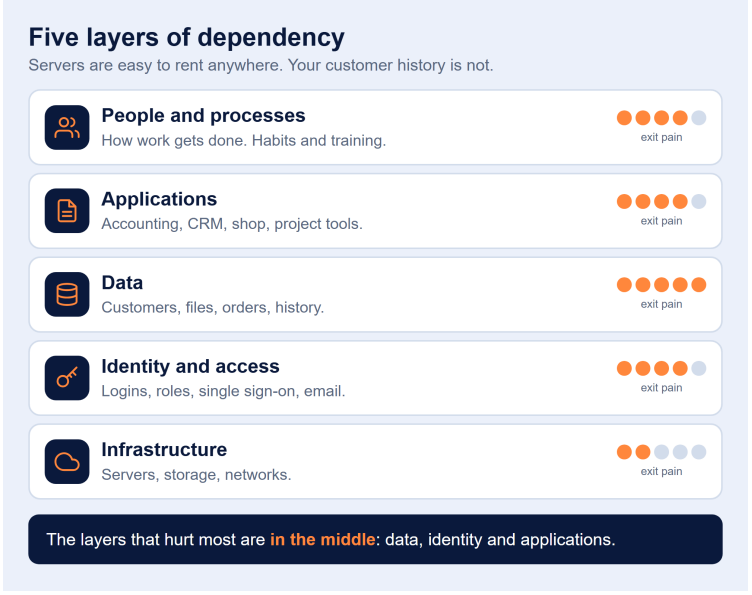
Nobody decides to be locked in. It accumulates through a series of reasonable steps.

1. You start with one service for one job. It works.
2. You add a second feature, because it is there and it is included.
3. You connect a third-party tool through the provider's marketplace.
4. You store more data, because storing it is cheap and deleting it feels risky.
5. You sign a longer term, because the discount is attractive.
6. You stop looking at the alternatives, because looking takes time you do not have.

Each step is sensible. The sum is a business whose daily work depends on something it could not replace in under a year. The cure is not to avoid cloud services. It is to keep a small, regular habit of asking, "what would leaving take?"

## The layers underneath your tools

It helps to see your own business as a stack. Each layer can be a dependency, and each has a different exit story.




The five layers of dependency in a typical small business

At the top sit your **people and processes**: how work gets done. Below that are **applications** such as accounting, CRM or the website. Under those is your **data**, the customers, files and records. Below the data is **identity and access**, the logins and permissions. At the base is the **infrastructure** that runs it all: servers, storage, networks.

Many small businesses focus on the infrastructure when they think about "the cloud", but the layers that hurt most when you leave are in the middle: data, identity and applications. Servers can be rented anywhere. Your customer history cannot.

## Cloud service types, in plain words

The Data Act talks about "data processing services", which is a broad term. In practice, you will meet three families, and the exit looks different for each.

| Type | Plain meaning | Examples of what you might use | Exit difficulty |
|---|---|---|---|
| **IaaS** | Rented servers, storage and networks | Virtual machines, file storage, backups | Medium: depends on how much you built on provider-specific features |
| **PaaS** | A platform to build and run your own software | Managed databases, hosting platforms, app runtimes | Medium to high: platform-specific tools slow the move |
| **SaaS** | Finished software delivered online | Accounting, CRM, e-commerce, project tools, email | Varies widely: depends on export quality and your own customisations |

The Data Act applies across these families. The *kind* of help you can expect differs. Infrastructure providers face a duty aimed at **functional equivalence**: reasonable measures so you can get a comparable service elsewhere. Other providers must offer open interfaces and export your data in a structured, machine-readable form (Chapter 3).[1]

## Why this matters more for small businesses

Large companies have procurement teams, legal departments and bargaining power. Small businesses usually have a card, a click-through agreement and a deadline. That asymmetry is exactly why the Data Act's switching rules matter to you: they set a floor of rights that applies whether or not you have a lawyer.

But the floor is not the ceiling. A right to switch is only as valuable as your readiness to use it. A business that knows its dependencies, has tested exports and has read its contract can act the week it needs to. One that has not will spend that week discovering what it should have known last year.

> **The rule.** Lock-in is not a verdict, it is a measurement. Measure it before you need to, while leaving is a choice and not an emergency.

## What to do this week

- Write down every cloud or online service your business pays for or depends on, including free ones. Appendix A gives you the table.
- Mark which of the six kinds of lock-in apply to each.
- Pick the one service you could least afford to lose, and keep it in mind for the rest of the book.

CHAPTER 2

# What Happens When You Leave a Provider?

The door at the end of the corridor: leaving is a process, not an event

Most people picture leaving a cloud provider as pressing a button. In reality it is a sequence of decisions, copies, checks and deletions spread over weeks, and the button, if there is one, is the last step. Understanding the sequence is half of planning it.

## Leaving is a project with six stages

The six stages of a cloud exit

**Stage 1: Decide.** You choose to leave, and why. The reason matters because it shapes the plan: price, service quality, security worries, a sale of the provider, a change of law or a new business need.

**Stage 2: Prepare.** You inventory what you have, read the contract, choose the destination and test an export. This is the longest and most valuable stage, and most of this book lives here.

**Stage 3: Notify.** You give the notice the contract requires. The Data Act sets a *maximum* notice period for starting a switch of two months; your contract may set less, never more.[3]

**Stage 4: Transfer.** Data and, where possible, configuration move from the old provider to the new one, often in parallel while both run.

**Stage 5: Cut over.** Your people, customers and connected systems start using the new service. This is the moment of risk, which is why it needs a rehearsal and a rollback plan (Chapter 7).

**Stage 6: Close.** You verify nothing is missing, retrieve final copies, make sure the old provider erases what it should, and cancel what remains.

Each stage can fail on its own. Skipping stage 2 turns stage 5 into a gamble.

## What you actually need to take with you

Your "data" is usually more than one thing. When you leave, you need to account for at least five categories.

1. **Content:** documents, images, emails, customer records, product catalogues, orders, invoices.
2. **Configuration:** settings, templates, user roles, permissions, workflows, integrations.
3. **History:** audit logs, change records, message history, versions, transaction trails. You may need these for accounting, disputes or compliance.
4. **Identities:** the list of users and what each is allowed to do, plus how they log in.
5. **Connections:** the web addresses, domains, API keys, webhooks and third-party apps that point at the service.

The Data Act's language follows a similar idea. It speaks of **exportable data**, meaning input and output data including metadata that your use of the service directly or indirectly generated, and **digital assets**, such as applications and settings you have the right to use independently of

the provider's contract.[5] It does not oblige a provider to hand over its own trade secrets, provider-internal data or security-related data, and the contract must list those exclusions.[3] You should know, before you sign, where that line sits.

## The things that break

Experienced migration teams tend to describe the same handful of failures. None is exotic.

- **The forgotten dependency.** A service quietly feeds something else: an invoice tool reading from the CRM, a website pulling product images from storage. You move the first and the second stops.
- **The format surprise.** The export opens, but dates, characters, attachments or relationships between records have been mangled. You discover it a week after cutover.
- **The permission gap.** Everyone can log in, but the access rights did not move, so the intern can see payroll or the manager cannot see anything.
- **The missing history.** Current records transferred; the audit trail did not. You need it for a tax inspection.
- **The domain and email trap.** Mail and website addresses are tied to the old service. A careless change means a day of lost customer emails.
- **The silent deadline.** The provider deletes your data on a date written in a document you never read.
- **The double bill.** You run both services for longer than planned, and neither contract can be ended.

Every one of these is preventable with a checklist, a test export and a calendar. That is the good news.

## What the provider owes you while you leave

A well-run provider helps you leave, because a good exit protects its reputation. The Data Act now makes parts of that help a legal obligation. During the switch, a provider must give you reasonable

assistance, act with due care so your business keeps running, tell you about known continuity risks and keep a high level of security, including for data in transit.[3]

It also must support your **exit strategy** by giving you the relevant information, and it must make available information on its switching and porting procedures, the formats it supports and any known technical limits.[3][4] Chapter 3 goes through these in detail.

What the provider does **not** owe you is a finished migration. It will not clean your data, map your fields, pick the new platform, test the result or train your people. If you leave that to the end, you will discover how much the word "reasonable" can carry.

## What the new provider does and does not do

A destination provider will usually offer onboarding help, and the Data Act expects all parties to cooperate in good faith to make switching effective.[4] Still, remember that salespeople describe the *easy* migration. Ask the new provider for:

- The list of data formats it imports **without conversion**.
- A written statement of what it will migrate for you and what stays your job.
- Reference customers of a similar size that have moved from your current provider.
- A trial or test environment, so you can load real data before you commit.

## Parallel running

The safest exits are not a hard switch but an overlap: the old and new services run side by side for a time, with data synchronised and users moved gradually. Overlap costs money, because you pay twice, and brings its own risk of confusion about which system is "the real one". It is nearly always worth it for critical systems.

The Data Act recognises parallel use. It protects your ability to use several providers at once, although a provider may charge for data egress during such use, only to pass on the actual costs it incurs.[4] Do not assume parallel running is free. Ask.

## Failure scenarios worth planning for

Not every exit is voluntary or calm. Plan at least briefly for these:

| Scenario | Your first question |
|---|---|
| Price rise or unwanted contract change | How long until it applies, and when must I give notice? |
| Provider is sold or merges | Who is the new data controller or processor, and where will my data sit? |
| Provider outage or serious security incident | Do I have a current copy of my own data outside their system? |
| Provider ends a product | How long is the sunset period, and is there a migration path? |
| Dispute or suspended account | Can I still reach my data if we disagree? |
| Change in law or in your customers' requirements | Does my data location or contract still meet what is required? |

A simple, regularly refreshed copy of your essential data held *outside* the provider is the single cheapest protection against all six.

> **The rule.** Plan the exit you hope never to need as if you will use it on a bad day. Bad days do not wait for a convenient calendar.

## What to do this week

- Pick one critical service and write its five categories: content, configuration, history, identities, connections.
- Find the data-retention and deletion statement in the provider's terms and note the dates.
- Put a reminder in the calendar for the contract's notice deadline.

CHAPTER 3

# Understanding Your Rights Under the EU Data Act

A European skyline at dawn: the Data Act applies to services offered in the Union

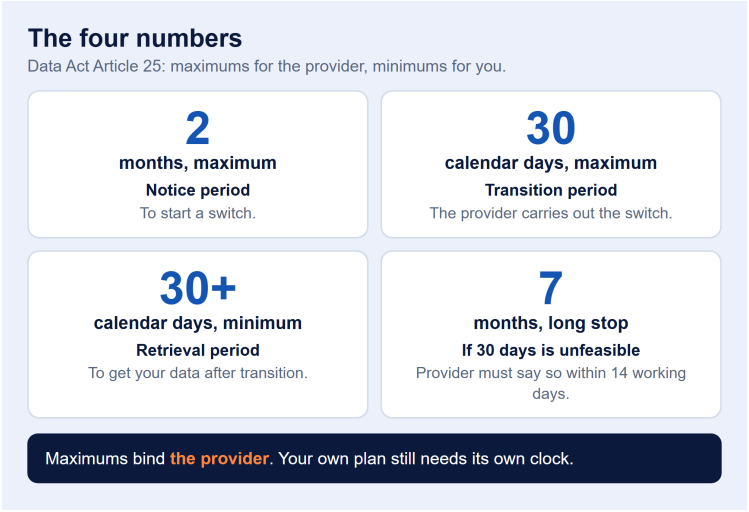
The Data Act is Regulation (EU) 2023/2854. It is a wide law about data generated by connected products and services, and it has a dedicated chapter, Chapter VI, on **switching between data processing services**. That chapter, together with the interoperability rules that sit beside it, is the part this book is about.[1]

It has applied since **12 September 2025**.[1] Providers offering data processing services to customers in the Union are covered regardless of where the provider is established, according to the Act's scope rules.[1] A free account is not a free pass either: the switching rules protect customers who have moved on from a free tier, too.[6]

## The idea in one sentence

Providers must **remove the obstacles** that stop you from ending a contract, signing with someone else, taking your data and assets with you, using several providers at once and getting a comparable service elsewhere.[3] Those obstacles can be commercial, technical, contractual or organisational, and the Act names them all.

## The four numbers to remember




The four numbers that frame a Data Act switch

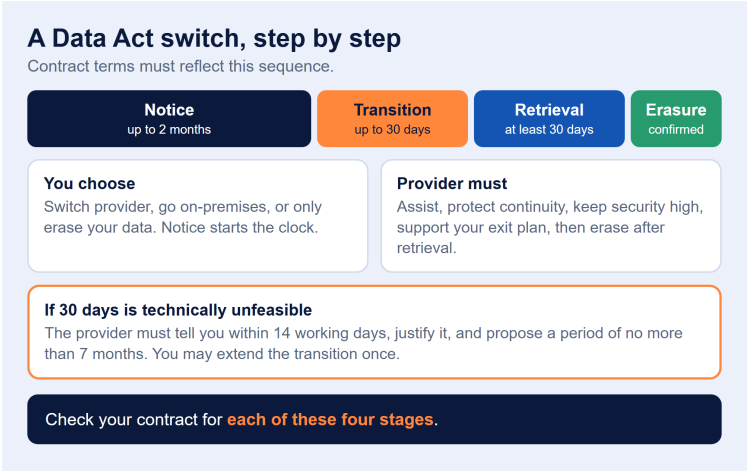
**Up to 2 months: the notice period.** Your contract must set a maximum notice period to begin switching, which may not exceed two months. [3]

**Up to 30 calendar days: the transition period.** Once the notice period ends, the provider must carry out the switch without undue delay and in any event within a maximum transitional period of 30 calendar days. [3]

**At least 30 calendar days: the data-retrieval period.** After the transition, your contract must give you a minimum period of at least 30 calendar days to retrieve your data.[3]

**Up to 7 months: the long stop.** If the 30-day transition is technically unfeasible, the provider has to tell you within **14 working days** of your request, justify it and propose an alternative period that must not exceed seven months. Service continuity applies throughout. You, as the customer, have the right to extend the transitional period once, for a period you consider appropriate.[3]

These are the headline numbers. They are *maximums for the provider* and *minimums for you*, which is the right way round.




A switch, step by step: from notice to erasure

## The contract must say all of this

The Act does not leave your rights to goodwill. Article 25 requires that switching rights and obligations be **clearly set out in a written contract**, made available before you sign in a form you can store and reproduce.[3] At minimum, that contract must include:

- Your right to switch to another provider or to your own on-premises systems, on request, without undue delay and within the maximum transitional period.
- The provider's duty to support your exit strategy, including by providing all relevant information.
- A termination clause: the contract ends when switching succeeds, or at the end of the notice period if you simply want your data erased.
- A **maximum notice period** of no more than two months.
- An **exhaustive list** of the data categories and digital assets that can be ported, covering at least all exportable data.
- An exhaustive list of provider-internal data that is excluded, where there is a real trade-secret risk, as long as this does not impede or delay your switch.
- A **minimum retrieval period** of at least 30 calendar days.
- **Full erasure** of your exportable data and digital assets after the retrieval period ends, once the switch is complete.

- The switching charges that apply.

Read that list as a checklist for your own contract. Anything missing is a question to put to the provider before it becomes a problem. Appendix C turns it into a form.

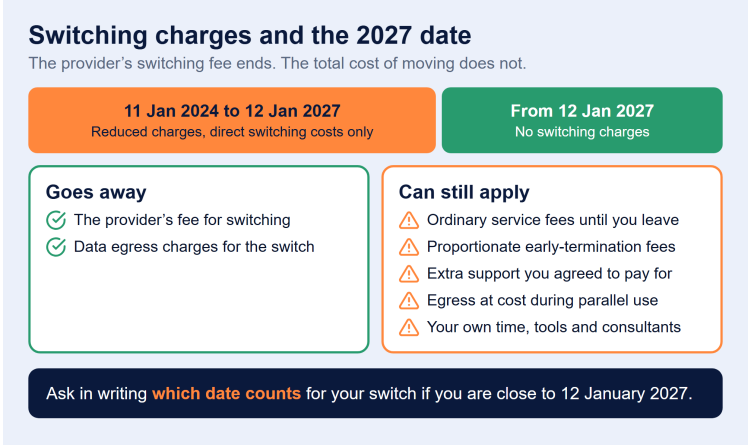
## What the provider must tell you

Beyond the contract, providers have **information duties**. They must give you clear information on switching and porting procedures, methods and formats, including known restrictions and technical limits. They must also point you to an up-to-date online register that sets out the data structures, formats, standards and open interoperability specifications for your exportable data.[4]

They must also publish on their website, and refer to in all contracts, the **jurisdiction** that governs their ICT infrastructure for each service and a general description of the measures they take against unlawful international government access to non-personal data held in the Union.[4] For a small business, that is a free due-diligence document. Read it.

## The charges: what changes on 12 January 2027

This is the headline hook and it deserves care.




Switching charges: reduced until 12 January 2027, then none

- **11 January 2024 to 12 January 2027:** providers *may* impose **reduced switching charges**, which must not exceed the costs the provider incurs that are directly linked to the switching process.[4]
- **From 12 January 2027:** providers **shall not impose any switching charges**.[4] The European Commission's own explanation says the Act will "entirely remove switching charges, including charges for data egress" from that date.[2]

That is a real and significant change. It is also narrower than some headlines suggest. The Act does **not** say that every cost associated with moving disappears. Several costs remain legitimate:

- **Ordinary service fees** while you are still a customer, including during the notice and transition periods.
- **Early-termination penalties** in a fixed-term contract, where the contract allows them and they are proportionate.[5]
- **Charges for custom work or extra support** that goes beyond the provider's legal switching obligations, where you agreed the price in advance.[5]
- **Data egress charges during parallel use**, only to pass on the actual costs incurred, not beyond them.[4]
- **Services custom-built for one customer** and not offered at broad commercial scale, which are partly carved out of the charge rules.[4]
- **Your own costs**: staff time, consultants, the new provider's fees, duplicated subscriptions and any retraining.

The sensible reading is: the *provider's fee for the act of switching* goes to zero, while the *total cost of moving* stays above zero. Chapter 5 shows how to calculate the rest.

One practical question has no simple answer in the sources used for this book: **which date counts**, the date you give notice, the date the switch is carried out, or the date the charge is imposed? The Act's wording speaks of charges *imposed* from 12 January 2027, which points towards the moment of charging.[4] If you are close to the date, **ask your provider in writing** how it will treat your switch, and keep the reply. Do not rush a poorly prepared migration purely to catch or avoid a date. A rushed migration that loses data costs far more than a month of switching charges.

## What does not apply: the exemptions

The Act is generous but not universal. Three limits matter in practice.

**Custom-built services.** For services where most main features are custom-built for one customer, or all components were developed for that customer, and which are not offered at broad scale through the provider's catalogue, some Chapter VI rules do not apply. These include the functional-equivalence rule, the charge rules and parts of the technical rules.[4] The contract terms still apply. A provider must tell you before you sign which obligations do not apply.[4]

**Testing and evaluation.** Non-production versions provided for a limited period for testing or evaluation are outside Chapter VI.[4]

**Limits on what a provider must do.** A provider does not have to develop new technology, hand over IP-protected assets or trade secrets, or weaken security to help you switch.[4]

Be aware, too, of the proposal known as the **Digital Omnibus**, which the European Commission has put forward to amend parts of the Data Act. The author could not confirm which switching rules it would change or its current status at the research date. If it matters to your decision, check the latest position before you rely on any detail in this chapter.[9]

## Interfaces, formats and "functional equivalence"

The technical duties differ by service type.

- For **infrastructure** services (servers, networks, virtual resources), the provider must take all reasonable measures so you can reach **functional equivalence** in the destination service.[4]
- For **other** services (platforms and software), the provider must make **open interfaces** available **free of charge** to you and to destination providers, with enough information to build software for portability.[4]
- Where no common specification or standard exists, the provider must export all exportable data in a **structured, commonly used and machine-readable format** when you ask.[4]

For a small business, the practical translation is: you are entitled to a proper export in a usable format, and you can ask for the documentation. Chapter 4 shows how to check whether what you get is genuinely usable.

## What the Data Act does not do

It is easier to set expectations when you know the limits.

What the Act gives you, and what is still your job

- It does not guarantee a **cheap** migration, only one without the provider's switching charge.
- It does not make **your applications** run on another platform.
- It does not clean, restructure or verify **your data**.
- It does not replace the **GDPR**. Personal data in a migration stays under data-protection law (Chapter 6).
- It does not give you a personal claim to damages for a bad export. Enforcement is mostly through national authorities that Member States designate.[6]
- It does not make a bad **contract** good. If your contract was signed before the rules applied, ask whether it has been updated.

## Who enforces it

Each Member State designates one or more competent authorities, and one is named the data coordinator.[2] Penalties must be effective, proportionate and dissuasive, and the details vary by country; as of mid-2025 commentary, few Member States had set maximum fines.[5] For you, the sensible sequence is: put your request in writing, keep the reply, escalate inside the provider, and only then look at the national authority or a lawyer. A calm, documented request resolves most disputes before they need a regulator.

> **The rule.** A right you have never invoked is a right you do not yet know how to use. Read your contract against the Act's list, and ask in writing for what is missing.

## What to do this week

- Find your contract or terms for your most critical service and check each item in the Article 25 list above. Use Appendix C.
- Look for the provider's switching page, its data-export documentation and its jurisdiction statement.
- Write down the notice period and the end date of your current term.

CHAPTER 4

# Data Portability and Export Formats

Boxes on a quayside: what you can pack matters as much as the right to ship

A right to your data is worth very little if what arrives is a pile of files nobody can open. This chapter is about the difference between data that is *technically exported* and data that is *genuinely portable*.

## Portable is not the same as downloadable

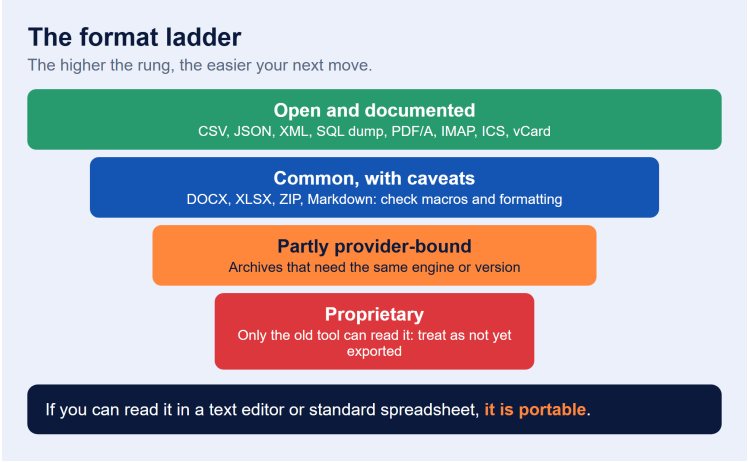
An export can fail in four ways even when the download button works.

1. **Incomplete:** records, attachments, comments or history are missing.
2. **Unreadable:** the format needs software only the old provider has.
3. **Disconnected:** the files are all there, but the links between them are gone, so an order no longer points to its customer.
4. **Unusable at scale:** the export is capped, slow or split into hundreds of pieces.

The Data Act's wording points in the same direction. Where no common standard exists, a provider must export all exportable data in a **structured, commonly used and machine-readable format**, and for non-infrastructure services it must provide open interfaces and information so portability software can be built.[4] It also has to list the exportable data categories in your contract and point to a register of formats and specifications.[3][4] Your job is to check the result.

## A format ladder

Not all formats are equal. Think of them on a ladder from most to least portable.




The format ladder: from open and universal to locked and proprietary

**Top rung: open, documented, widely supported.** CSV for tables, JSON or XML for structured records, SQL dumps or Parquet for databases, PDF/A and plain text for documents, standard image formats, IMAP or mbox for email, iCalendar (ICS) for calendars and vCard for contacts. Almost any new provider or tool can read these.

**Middle rungs: common but with caveats.** Office files (DOCX, XLSX), provider-neutral archives (ZIP, TAR) and Markdown. They move well, but formatting, macros and embedded objects can change.

**Bottom rung: proprietary or provider-bound.** A backup that only the original tool can restore, a "project export" in a private format, an archive that depends on the provider's database engine version, or a document that exists only as a link to an online editor. Treat these as *not yet exported*.

> **A simple rule of thumb.** If you can open the file in a plain text editor or a standard spreadsheet and understand what each column means without asking the provider, it is portable. If you cannot, it is not.

## What to ask for, by type of data

| Data | Best export | Watch out for |
|---|---|---|
| Customer and contact lists | CSV, vCard | Character encoding (accents), merged fields, duplicate IDs |
| Orders, invoices, accounting | CSV, JSON, the national e-invoice format if one exists | Rounding, tax codes, missing credit notes, locked periods |
| Documents and files | Original files in folders; PDF/A for archives | Version history, comments, sharing permissions, shortcuts that are only links |
| Email and calendar | IMAP sync, mbox, ICS | Labels vs folders, attachments, shared mailboxes |
| Databases | SQL dump or Parquet plus schema description | Engine version, stored procedures, character sets |
| Website | Files plus database dump plus a configuration list | Plug-ins, media library paths, redirects, SSL certificates |
| Project and task data | CSV or JSON with IDs preserved | Parent-child links, assignees, attachments, comments |
| Automations | A written description plus screenshots | They rarely export as runnable code. Plan to rebuild them. |
| Logs and audit trails | CSV or JSON, with time zones stated | Retention limits, partial exports |
| User accounts and roles | A list of users, roles and rights | Passwords never export. Plan to reset them. |

## Data portability under two laws

Two different rights are easy to confuse.

- **GDPR Article 20** gives *individuals* a right to receive the personal data they provided to a controller in a structured, commonly used, machine-readable format. It is about the **customer's** data held by **you**.
- **The Data Act's switching rules** give *you, as the customer of a cloud service*, rights against the provider of that service. They are about **your** data held by **your provider**.

If you run a business, you are on both sides. You can ask your provider for your exports under the Data Act, and you may have to produce exports for *your* customers under the GDPR.[7] Choosing a service

whose exports are good makes both jobs easier.

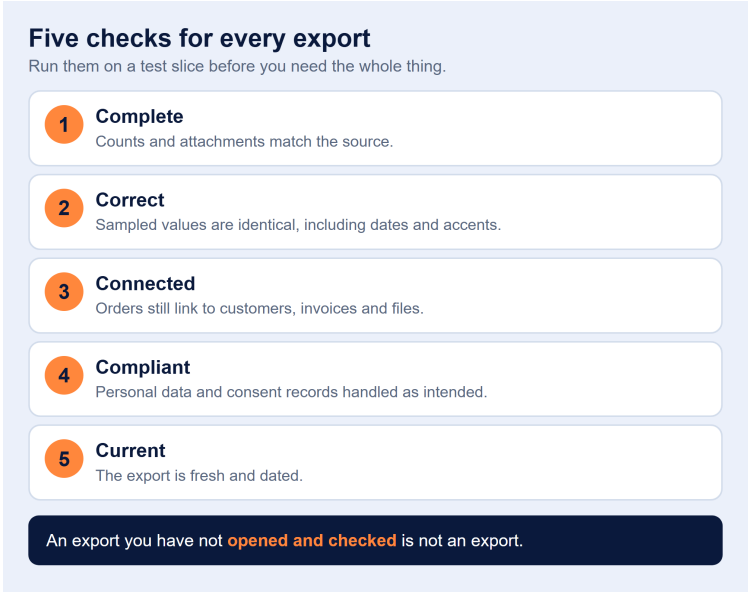
## The test export: your most valuable hour

Most of what this book recommends comes down to one habit: **export before you need to, and look at what you got.** Here is a repeatable way to do it.

1. **Choose a representative slice.** A month of orders, one team's documents, 500 customers, one mailbox. Include awkward cases: accents, attachments, deleted records, records that link to others.
2. **Run the export** using the provider's documented method. Note how long it took, whether it asked for support's help, and any limits.
3. **Count.** Compare record counts and file counts with what the system shows. A mismatch is a finding.
4. **Sample.** Pick ten records at random and check them field by field against the live system.
5. **Follow a link.** Take one order and trace it to its customer, its invoice, its attachment. If any link breaks, note exactly where.
6. **Open it somewhere else.** Open the files in a different program, ideally on a different computer. Check dates, currencies, accents and line breaks.
7. **Try an import.** Load a small part into a free trial of a likely alternative or a test spreadsheet. Importing is where hidden problems show.
8. **Write it up** in half a page: what worked, what did not, what the provider needs to fix or explain.
9. **Repeat** every six to twelve months, and after any major change.

A completed test export, with the half-page summary, is the best single piece of evidence that you can actually leave. Appendix E gives you the worksheet.

## The five checks every export must pass




Five checks to run on any export before you trust it

**Complete:** counts match, including attachments and archived or deleted-but-recoverable items. **Correct:** sampled values are identical to the source, including dates, time zones, currencies and special characters. **Connected:** relationships between records survive through IDs or references. **Compliant:** personal data is included only where it should be, and access rights and consent records are preserved if you need them. **Current:** the export is fresh. An export from last March is a snapshot of last March.

## Metadata, history and the things people forget

It is easy to export the *current* version of everything and lose the *story*. Depending on your business, you may need:

- **Version history**, to show who changed a contract and when.
- **Audit logs**, for security investigations and for demonstrating accountability.
- **Timestamps and authorship**, which accountants and auditors may ask for.

- **Deleted items in a recycle bin**, if the law or your own policy says you must keep them.
- **Consent records**, for marketing lists. Moving a list without its consent history is a compliance problem waiting to happen (Chapter 6).

The Data Act's definition of exportable data includes metadata generated by your use of the service, but it excludes provider-internal and security-related data, and its trade-secret carve-outs must be listed in your contract.[3][5] If your exit needs something borderline, such as logs or detailed audit data, ask early.

## APIs: the better way to export

For anything large or recurring, an **API** (a way for software to ask another service for data) beats a manual download. An API lets you export in batches, check progress, repeat the export and often preserves relationships between records. Under the Data Act, providers of non-infrastructure services must offer open interfaces free of charge for portability.[4]

You do not need to write code. Many migration and automation tools connect to common services through their APIs, and a freelancer can usually script a one-off export in a day. The thing to ask your provider is simply: **"Which API or export tool do you recommend for a full export, and what are its limits?"**

## Keep your own copy

The most reliable way to be portable is to hold a **second copy of your essential data that the provider does not control.** A common, simple pattern is known as 3-2-1: three copies, on two different kinds of storage, with one kept somewhere else.

For a small business, a realistic version is:

- A **monthly full export** of critical systems to an encrypted drive or storage account with a different provider.
- A **weekly export** of the fastest-changing data, such as orders or support tickets.
- A simple **restore test** twice a year.

This is also your best protection in the bad scenarios from Chapter 2: an outage, a locked account, a security incident or a dispute.

## When the export is poor

If your test export fails the five checks, you have three options, in this order.

1. **Ask the provider.** Put the specific problem in writing and refer to your contract's list of exportable data and format information. A precise, polite email usually works.
2. **Fix it on your side.** Use a conversion or migration tool, or a freelancer, to clean and reshape the data. Budget for it in Chapter 5.
3. **Escalate.** If the provider cannot give you a usable export of data its contract says is exportable, raise it formally and keep the evidence. A national competent authority is the last step, not the first.

> **The rule.** An export you have not opened is not an export. Run the test, check the five points, and write down what you found.

## What to do this week

- Run a test export of one important system and complete Appendix E.
- Identify any data you cannot export in a usable format and note the reason.
- Start a monthly export routine for your most critical service.

CHAPTER 5

# Cloud Contracts and Hidden Switching Costs

Reading the small print: the real exit terms are in the contract

Your cloud contract is the document that decides what leaving will cost, and most of us accepted it with one click. This chapter shows you where the cost hides, how to add it up and what to ask before you sign or renew.

## The cost of leaving is more than one number

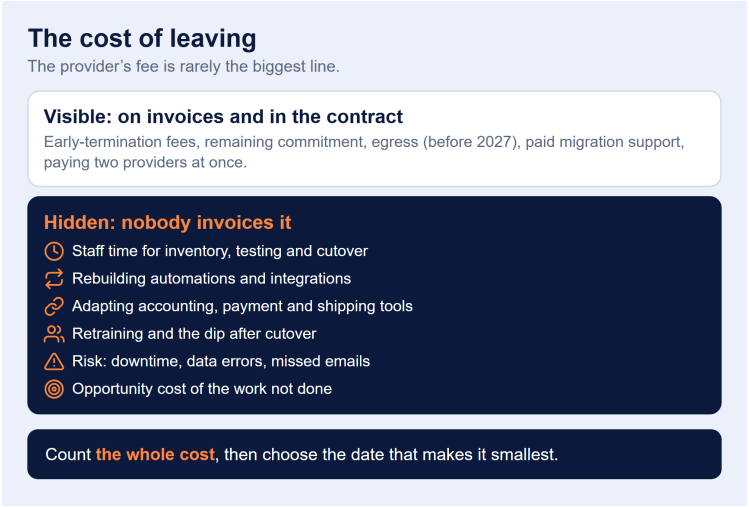
Many owners look for a single "exit fee" and, finding none, assume leaving is free. The Data Act helps by ending the provider's *switching charge*, but that charge was only ever one part of the cost.

**Visible costs** appear on invoices or in the contract:

- Early-termination fees and lost discounts in a fixed term.
- Remaining prepaid or committed spend.
- Data egress and transfer charges, *until* 12 January 2027 for switching.
- Paid support or professional services for the migration.
- Parallel running: paying two providers at once.

**Hidden costs** rarely appear anywhere:

- **Staff time.** Hours spent on inventory, testing, data cleaning and training. This is usually the biggest number.
- **Rebuilding** automations, integrations, templates and reports.
- **Adapting connected tools:** accounting, payments, shipping, marketing.
- **Retraining** and the productivity dip after cutover.
- **Specialist help:** a freelancer, consultant or migration partner.
- **Risk costs:** the expected loss from data errors, downtime or missed customer emails.
- **Opportunity cost:** what your team did not do while migrating.




The cost of leaving: what shows on the invoice and what does not

## Ten clauses to find in your contract

Read the contract with a pen. These ten clauses decide most of your exit cost. Appendix C turns the list into a form you can fill in per provider.

1. **Term and renewal.** Is it monthly, annual or multi-year? Does it renew automatically, and when does the cancellation window close?
2. **Notice period.** How long before the end must you notify, and in what form? Check it against the two-month maximum for starting a switch.[3]

3. **Early termination.** What happens if you leave mid-term: a fee, the remaining balance, lost discounts?
4. **Price changes.** Can the provider change prices or features during a term, and what are your rights if it does?
5. **Switching clause.** Does the contract describe your Data Act switching rights, the transition period and the retrieval period?[3]
6. **Exportable data.** Is there an exhaustive list of what you can take, in which formats, and what is excluded?
7. **Data deletion.** When and how is your data erased after the switch, and can you get confirmation?
8. **Charges.** Does the contract state the switching charges that apply, now and from 12 January 2027?[3][4]
9. **Liability and availability.** What does the provider promise about uptime and what compensation exists if it fails? A cheap contract with a weak promise is a hidden cost.
0. **Governing law and jurisdiction.** Where is the service run, where do disputes go, and what does the provider say about international government access?[4]

## Look for the "stickiness" patterns

Some contract designs are legitimate but deliberately make leaving harder. They are worth recognising.

| Pattern | What it does | What to do |
|---|---|---|
| **Multi-year discount** | Large discount for a long commitment, lost if you leave early | Compare the saving against the cost of being stuck. Prefer shorter terms or a break clause. |
| **Committed spend** | You promise to spend an amount whether or not you use it | Commit only to what you are sure to use. Check how unused commitment is treated. |
| **Free credits** | Credits for the first year, then full price | Calendar the end date. Model the price without credits. |
| **Bundles** | Several products sold together at a discount | Price each product on its own. Understand what leaving one does to the others. |
| **Auto-renewal** | Renews for a full term unless you cancel inside a window | Put the cancellation deadline in the calendar the day you sign. |

| Pattern | What it does | What to do |
|---|---|---|
| **Provider-specific add-ons** | Features that work only with the provider's other products | Ask what the open alternative is. Note it as technical lock-in. |
| **Unbundled egress** | Low storage price, high price to retrieve data | Know the egress price; after the Act's date it should not apply to switching, but it can still apply in parallel use.[4] |

## What the Act makes providers tell you before you sign

Providers must disclose, before you conclude a contract, the **standard service fees** and **early-termination penalties** that apply, as well as any reduced **switching charges** that apply during the transition period. They must also tell you if some of their services involve **highly complex or costly switching**, and they must publish this information in a dedicated section of their website or something similar.[4]

That is a useful tool. When comparing providers, ask each one for these disclosures. A provider that cannot answer clearly in writing is telling you something.

## Worked example: Dario's webshop (fictional)

Dario runs a small Croatian webshop with two employees. He hosts the shop, a customer database and product images on one provider on an annual plan. He wonders what moving to another provider would really cost. Here is his estimate, in a table he built using the worksheet in Appendix B.

| Item | Estimate | Notes |
|---|---|---|
| Remaining months on annual plan | 3 months x EUR 140 = EUR 420 | Overlap while both run |
| Early-termination fee | EUR 0 | Contract allows non-renewal at the anniversary |
| Provider switching charge (before 12 Jan 2027) | EUR 0 to EUR 120 | He asks in writing; the answer is "up to direct cost" |
| New provider setup and first month | EUR 180 | Includes onboarding call |
| Freelancer for data export and import | 12 hours x EUR 55 = EUR 660 | Includes testing |

| Item | Estimate | Notes |
|---|---|---|
| Own staff time | 30 hours x EUR 25 = EUR 750 | Inventory, checks, training, cutover day |
| Rebuilding two automations | 6 hours x EUR 55 = EUR 330 | Orders to accounting, stock alerts |
| Risk reserve (10%) | about EUR 240 | For surprises |
| **Estimated total** | **about EUR 2,600 to EUR 2,700** | |

Two things stand out. The provider's switching charge, the one the Data Act removes from January 2027, is the *smallest* line. And the biggest lines are Dario's time and his freelancer. That does not make the Act irrelevant: it makes the exit possible and removes a charge. But it shows why Dario's best investments are a clean export and a rehearsed cutover, not a fight over a EUR 120 fee.

Dario also finds something useful: if he waits until his annual plan renews in March, he avoids three months of overlap and can give notice with time to spare. **Timing is a cost lever.** The moment a contract can end without penalty is the cheapest time to leave.

## How to negotiate, even as a small customer

Small businesses have more leverage than they think, especially around renewal. A few approaches that tend to work:

- **Ask for the exit terms in writing before you sign.** Providers are used to being asked, and the Act has made the questions routine.
- **Ask for a shorter term or a break clause** instead of a long commitment.
- **Ask what happens if prices rise.** A right to leave without penalty on a price change is worth more than a discount.
- **Ask for a named contact** or a documented process for switching requests.
- **Compare at least two alternatives,** even if you intend to stay. Mentioning that you have a plan to leave changes the conversation.
- **Never sign on the last day.** Deadlines are for sellers.

## Contracts signed before the Act

Many contracts predate the Data Act's application. The rules are meant to apply to the services provided to customers in the Union, and providers have been updating terms, but you should not assume yours has been. Ask your provider whether and when its contract terms were updated to reflect Chapter VI, and what they now say. If the answer is vague, treat it as a finding and add a line to your risk list.[1][5]

> **The rule.** The cheapest time to negotiate your exit is when you are signing, and the second cheapest is today. The most expensive is the week you need it.

## What to do this week

- Complete Appendix C for your most critical provider.
- Put the cancellation deadline and notice period in your calendar.
- Make a first exit-cost estimate using the Dario table as a model.

CHAPTER 6

# Protecting Personal Data During Migration

A vault door, slightly open: migration is when personal data is most exposed

A migration copies, moves and temporarily duplicates your most sensitive information. It is also one of the moments when ordinary businesses make avoidable data-protection mistakes: a customer file emailed to a freelancer, a spreadsheet left on a laptop, an old account that is never closed. This chapter covers the GDPR side of leaving a provider.

## The Data Act does not replace the GDPR

The Data Act expressly leaves personal-data law in place. If your migration involves information about identifiable people (customers, employees, leads, suppliers' contacts), the **GDPR** applies to it the whole way through, alongside the Data Act's switching rules.[1][7] In practice:

- The Data Act tells your provider what it must **enable**.
- The GDPR tells *you* what you must **protect**, **document** and **delete**.

When the two seem to pull in different directions, the safe path is the one that protects the people the data is about.

## Know your roles

For most small businesses using a cloud service:

- **You are the controller.** You decide why and how the personal data is used.
- **The provider is a processor.** It handles the data on your behalf and on your documented instructions.
- **The new provider will also be a processor,** and its own sub-processors come with it.

Being the controller means the responsibility stays with you, including for what your processors do with the data on your behalf. A provider's marketing page saying it is "GDPR compliant" does not change that.

## The contract with each processor

Under GDPR Article 28, the relationship with a processor must be governed by a contract or other legal act, usually a **data processing agreement (DPA)**, which includes, among other terms, that the processor deletes or returns all personal data to you at your choice once the services end, unless the law requires storage.[7] That clause is the bridge between your exit plan and your compliance duties.

Before you migrate, check:

- ☐ You have a **signed DPA** with the old provider, and you know where it is.
- ☐ You have a **signed DPA with the new provider before any personal data moves.**
- ☐ The DPAs name the **sub-processors** and the countries where data will be held.
- ☐ The old DPA says what happens to your data at the end: return, deletion, timing and confirmation.
- ☐ The new DPA covers the transfer methods and security you expect.

## International transfers

If the new provider, or one of its sub-processors, is outside the European Economic Area, or can be accessed from outside it, you need a **lawful transfer mechanism** under Chapter V of the GDPR, such as an adequacy decision, standard contractual clauses or another approved safeguard.[7] Adequacy decisions and their legal challenges change over time, so check the current position rather than relying on an old assumption.

The Data Act adds a transparency tool: providers must publish the **jurisdiction** that governs their ICT infrastructure and a description of measures against unlawful international government access to non-personal data.[4] It applies to non-personal data, but the same page is a good place to start asking questions about personal data too.

## Use the move to tidy up

A migration is the best opportunity you will have to practise **data minimisation** and **storage limitation**. Moving data you no longer need creates cost, risk and a duty to protect it for no benefit. Before you export:

1. **Review what you hold.** Which categories of personal data are in this system?
2. **Apply your retention rules.** If a record is past its period and no law requires you to keep it, delete it *before* migration, or exclude it from the export.
3. **Keep what you must,** such as accounting records and contracts for the legal period, but consider archiving them in a restricted place instead of the live new system.
4. **Anonymise** where you can: old analytics, test data and reports rarely need names.
5. **Decide the fate of backups** at both providers.

Write the decisions down. Your **record of processing activities** should be updated to reflect the new provider, the new location and any change in purposes or retention.

## Security while data is in motion

The risky moment is not the cloud; it is the file on someone's laptop. Make a short rule set and enforce it.

- **Encrypt in transit and at rest.** Use encrypted transfer channels and encrypted storage for every temporary copy.
- **No email attachments** for exports. No consumer chat apps.
- **Keep the number of people** with access to the export small, and name them.
- **Use named accounts,** not shared logins, and switch on multi-factor authentication on both providers.
- **Temporary copies get a deletion date.** The export folder is deleted on a day in your plan and the deletion is recorded.
- **Contractors sign confidentiality terms** and, if they handle personal data on your behalf, are covered by a processor agreement.
- **Use a checksum** or file count to prove the transfer is complete and unaltered.
- **Time-limit access:** revoke the migration team's and old provider's access when the work is done.

> **A common slip.** A freelancer is asked to "just move the customer list" and does it via a personal cloud folder. The data is now at a third provider nobody listed. Always name every place the data will touch.

## Information, consent and rights during the move

People whose data you hold keep their rights during a migration. Consider each:

- **Privacy notice.** If the new provider means a new category of recipient or a new transfer location, update your privacy notice. If the notice names providers, update it.
- **Consent records.** For marketing lists, move the **proof of consent**, including the date, source and wording, not just the email address. Without it, you may not be able to show the consent was valid.
- **Opt-outs and suppression lists.** Move them too, or you may email someone who has already said no.

- **Access, deletion and portability requests.** Do not let requests slip into a gap. Keep a short log of requests received during the migration and make sure each is answered within the legal period.
- **Children's or special-category data.** If you hold health, biometric or similar data, treat the migration as a higher-risk activity and consider a data protection impact assessment, and take specialist advice.

## When something goes wrong

A **personal data breach** during migration is not a hypothetical: a misdirected export, an unprotected link or a lost drive all qualify. If it happens, GDPR requires you, as controller, to notify the supervisory authority without undue delay and, where feasible, within 72 hours of becoming aware, unless the breach is unlikely to result in a risk to people, and to inform affected individuals if the risk to them is high.[7]

Have a one-page plan before you start:

1. Who decides whether it is a breach?
2. Who contacts the provider and the authority?
3. What do you need to write down, and where?

## Closing the loop: deletion and confirmation

At the end of the exit, your old provider should erase your exportable data and digital assets after the retrieval period.[3] For personal data, your DPA should also say it will delete or return it. Do not assume it happened.

- **Ask for written confirmation** of deletion, including backups and, where applicable, sub-processors, and the date.
- **Note the retention** of any records the provider must keep by law and for how long.
- **Close the accounts** and revoke API keys, tokens and connections that still point at the old service.
- **Check the old service is really empty,** within the limits of your access, before the retrieval period ends.

If the provider's answer is vague, that is a finding. Keep a copy of the exchange with your records.

## Worked example: Dario's customer list (fictional)

Dario's webshop holds about 6,000 customer records. During the migration his freelancer asks him to send the customer export by email. Dario's checklist stops that. Instead:

1. Dario and the freelancer sign a data-processing agreement and a short confidentiality clause.
2. The export is made straight into an encrypted folder at the new provider.
3. Before the export, Dario removes about 1,400 guest-checkout records older than his retention period.
4. The consent log and suppression list move with the customer list.
5. The folder of temporary files is deleted on day 24 of his plan and the deletion is noted.
6. After cutover, Dario updates his privacy notice and his record of processing activities, then requests written deletion confirmation from the old provider.

None of this was difficult. All of it was written on a single page before the work started.

> **The rule.** Move the people's data only as far, as fast and as safely as you can explain. If you cannot say where every copy is, you are not finished.

## What to do this week

- List every system that holds personal data and check that a signed DPA exists for each provider.
- Check retention: what can be deleted *before* a migration?
- Draft the one-page breach plan for the migration period. Appendix E has a section for it.

CHAPTER 7

# Your Practical 30-Day Cloud Exit Plan

A footbridge towards the horizon: one step at a time, in the right order

This chapter turns everything before it into a four-week plan. It is built for a small business moving a handful of services with no dedicated IT team: a business like Marta's studio or Dario's webshop. It is also useful if your setup is larger, as the **preparation sprint** that should come before you give notice or request switching.

## Two clocks, not one

Be careful not to confuse two different 30-day periods.

- The **legal clock** in the Data Act sets maximums for the *provider*: a notice period of up to two months, a transition of up to 30 calendar days, and a retrieval period of at least 30 days (Chapter 3).[3]
- The **plan clock** in this chapter is *your* 30 days of preparation and execution.

They can overlap, but they are not the same. If your setup is simple, your plan can run inside the provider's transition period. If it is complex, run your 30 days *first*, then give notice with the facts in hand.

## The plan at a glance

The 30-day plan: four weeks, four goals

**Week 1: See it.** Inventory, owners, contract and data map. You will know exactly what you have. **Week 2: Prove it.** Choose the destination, test exports, check formats, tidy data and sign agreements. You will know it can move. **Week 3: Rehearse it.** Notify, build the new environment, migrate a copy, test with real users. You will know it works. **Week 4: Move it.** Cutover, monitor, retrieve, close. You will be out, with proof.

The plan assumes about **one to two hours a day** from one accountable owner, plus short sessions with anyone else involved. Complex setups will need more.

## Week 1: See it (days 1 to 7)

**Day 1: Name the owner and the reason.** One person is accountable. Write down why you are leaving or testing the exit, the date you would like to be out by, and what "success" means in one sentence.

**Day 2: Inventory the services.** Complete Appendix A for the service you are leaving and for anything connected to it. Include logins, who pays, who administers.

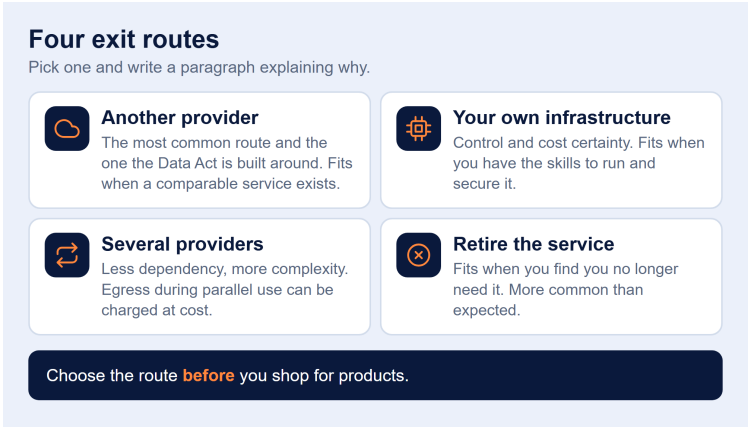
**Day 3: Map the data.** For each service, list the five categories from Chapter 2: content, configuration, history, identities, connections. Note the approximate size and where personal data sits.

**Day 4: Read the contract.** Fill in Appendix C. Note the term, the notice deadline, any fees and what the contract says about switching, formats, retrieval and deletion.

**Day 5: Count the cost.** Make a first estimate using Appendix B. Mark what is a firm number and what is a guess.

**Day 6: Identify the risks and dependencies.** What breaks if this service is down for a day? Which other tools connect to it? Which customers would notice?

**Day 7: Decide the route.** Choose one of the exit routes below and write one paragraph explaining why.




Four exit routes and when each fits

**Another provider** is the most common route and the one the Data Act is built around. **Your own infrastructure** suits businesses with technical skills and a need for control. **A multi-provider setup** reduces dependency but adds complexity, and in parallel use egress may be charged at cost.[4] **Retire** the service is right when you find you no longer need it, which happens more often than people expect.

## Week 2: Prove it (days 8 to 14)

**Day 8: Shortlist two destinations.** Use the questions from Chapter 2 and Chapter 5. Ask each for its switching documentation, supported import formats, DPA, sub-processors and jurisdiction statement.

**Day 9: Run a test export** from the old service using Chapter 4. Count, sample, trace a link, open somewhere else.

**Day 10: Try a test import** into your preferred destination, using a free trial or a test project. Note anything that did not survive.

**Day 11: Decide what to migrate and what to delete.** Apply retention rules (Chapter 6). Smaller, cleaner data makes every later step faster.

**Day 12: Sign what must be signed.** The DPA and contract with the new provider. Check the exit terms of the *new* contract, too: you are about to be a customer again.

**Day 13: Write the migration runbook.** One document, a page or two: order of steps, who does what, how long each takes, what the rollback is, how you will tell people.

**Day 14: Review and go/no-go.** Look at the test results. If the export or import failed in ways you cannot fix, do not proceed to week 3. Use the time to resolve with the providers. A paused plan is a successful plan.

## Week 3: Rehearse it (days 15 to 21)

**Day 15: Give notice, in writing.** Use Appendix D. Keep a copy, a date and the provider's acknowledgement. If your timing is near 12 January 2027, ask how your switch will be charged (Chapter 3).

**Day 16: Build the destination.** Set up accounts, users, roles and settings. Turn on multi-factor authentication. Configure backups from the start.

**Day 17: Migrate a full copy.** Move a complete copy of the data. Do not touch the live service. Run the five checks from Chapter 4.

**Day 18: Rebuild integrations and automations** that matter most, in order of business impact: payments, orders, invoices, email, then the rest.

**Day 19: Run a pilot.** Two or three real users work in the new environment for a day, with a short feedback list.

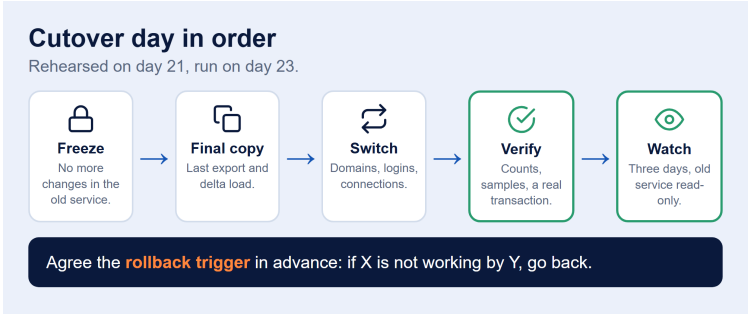
**Day 20: Fix and freeze.** Fix what the pilot found. Agree a **freeze time**: after this, nobody changes data in the old service unless the plan allows it.

**Day 21: Rehearse the cutover.** Walk through the runbook with everyone involved. Time it. Agree the rollback trigger: "if X is not working by Y, we go back."

## Week 4: Move it (days 22 to 30)

**Day 22: Final communications.** Tell staff, key customers and suppliers what is changing and when. Keep it short and specific. Include whom to call.

**Day 23: Final sync and cutover.** Freeze the old service, take a final export, load the delta into the new service, switch the connections, domains and logins, and verify.




Cutover day in order: freeze, final copy, switch, verify, watch

**Day 24: Watch closely.** Check orders, invoices, email, payments and user access. Keep the old service available, read-only if possible, as your safety net.

**Day 25: Verify with the checklist.** Counts, samples, links and access rights again, on the live system. Fix what you find.

**Day 26: Retrieve what you still need.** Take the final exports, logs and history within the retrieval period.[3] Store them with your records.

**Day 27: Delete temporary copies.** Remove migration files and revoke the migration team's access. Record it.

**Day 28: Request deletion and confirmation** from the old provider. Close accounts. Revoke keys and tokens.

**Day 29: Update the paperwork.** Record of processing activities, privacy notice, asset inventory, access lists, backup schedule, your exit plan for the *new* provider.

**Day 30: Review.** What went well, what took longer than expected, what would you change? Write half a page. Put the next test export in the calendar.

## The cutover checklist

- ☐ Final backup of the old service stored outside it
- ☐ Users and roles verified in the new service
- ☐ Domain, email and DNS changes made and tested
- ☐ Payment and accounting connections tested with a real transaction
- ☐ Customers and staff notified; support contact named
- ☐ Rollback plan confirmed, with a decision time
- ☐ Old service set to read-only or paused, not deleted
- ☐ Monitoring: someone checks orders, email and errors every few hours for three days

## What can go wrong, and what to do

| Problem | First response |
|---|---|
| Export fails or is incomplete | Stop. Ask the provider in writing. Use the retrieval period; do not delete anything. |
| The provider says the 30-day transition is unfeasible | Ask for the written reason and proposed alternative within the legal timeline; it must not exceed seven months. Keep service running.[3] |
| Data is corrupted after import | Roll back to the old service. Fix the mapping. Re-run the five checks. |
| Staff cannot log in on day one | Keep the old service live. Provide a short sign-in guide and a support contact. |
| Customer emails are missed | Check DNS and forwarding first. Keep the old mailbox active for a defined period. |
| The new provider is slower or worse than expected | Do not delete the old copy. Use your documented exit plan: you now have a tested one. |

## If you decide to stay

The plan has value even if you do not leave. A business that completes weeks 1 and 2 has an inventory, a tested export, a cost estimate, a contract summary and a better position at the next renewal. Many owners find that staying is the right decision, and that they now stay by choice. That is what control looks like.

## Making it a habit

Exit readiness decays. Services change, data grows, people leave. Keep it alive with a small routine.

- **Monthly:** run the export for your critical service and keep it outside the provider.
- **Quarterly:** check the inventory, the contract deadlines and any new terms the provider has announced.
- **Yearly:** run a test import into an alternative and re-run the exit-cost estimate.
- **Every new service:** before you buy, ask the Chapter 5 questions and fill in a line in Appendix A.

> **The rule.** Do not wait to need your exit plan. Ask for the data, test the file, read the clause, and write the date down. Then you are free to stay or go.

# Conclusion: Control Is the Plan

Return, for a moment, to Marta in Lisbon. After reading her contract, running a test export and putting two providers' answers side by side, she did something unexpected. She stayed.

She stayed because, with the facts in front of her, the price rise was affordable and her provider's exports were good. But she stayed on different terms. She moved from a three-year commitment to a one-year one. She set a monthly export to an encrypted drive. She wrote the exit steps on two pages and put the notice date in her calendar. And she asked her provider, in writing, how it would treat a switch after 12 January 2027. The answer came back within a week.

That is the point of this book. The Data Act has shifted the balance a little in the customer's favour: maximum notice and transition periods, a right to your data, clear contract terms and, from 12 January 2027, an end to switching charges.[2][3][4] That is welcome and worth using. But rights only work for people who are ready to use them. Your readiness is built from small, ordinary things: a list, a contract read with a pen, a file you have opened, a signed agreement, a date in a calendar.

Five habits are worth keeping:

1. **Know what you depend on.** Keep the inventory alive.
2. **Know what you can take.** Test the export and open the file.
3. **Know what it costs.** Count the whole cost, not just the fee.
4. **Know your obligations.** Protect personal data from first copy to last deletion.
5. **Know your date.** Notice periods and renewals are the easiest money you will ever save.

The cloud is not the enemy, and leaving it is not the goal. **Choice is the goal.** A business that can leave can negotiate, can compare and can recover. Start with the Ten-Minute Exit Readiness Check, pick one service and do this week's task. Then you are no longer hoping you can leave. You know.

APPENDIX A

# Cloud Service Inventory

Fill in one row per service, including free tools. Review it every quarter. Rate each lock-in type from 1 (low) to 3 (high): **T**echnical, **D**ata, **C**ontract, **I**dentity.

| Service and provider | What it does for us | Owner | Personal data? | Term ends / notice | T | D | C | I |
|---|---|---|---|---|---|---|---|---|
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**Questions to answer for each critical service**

- Where is the data stored (country or region)? _____
- What is the last date we tested an export? _____
- Is there a copy of the data outside this provider? Yes / No
- What breaks if this service is unavailable for a day? _____

APPENDIX B

# Exit Cost Worksheet

Use firm figures where you have them and mark guesses. Add a risk reserve of about 10 percent.

| Cost item | Hours or units | Rate (EUR) | Total (EUR) | Firm or guess |
|---|---|---|---|---|
| Remaining term / overlap with old provider | | | | |
| Early-termination fee or lost discount | | | | |
| Provider switching or egress charge | | | | |
| New provider set-up and first period | | | | |
| Consultant or freelancer | | | | |
| Own staff time (inventory, testing, cutover) | | | | |
| Rebuilding automations and integrations | | | | |
| Retraining and support | | | | |
| Other tools affected | | | | |
| Risk reserve (10%) | | | | |
| **Total** | | | | |

**Savings after the move (per year):** _____ **Payback time (months):** _____

**Timing check.** The cheapest exit date is usually when the term ends without a fee. Date: _____ Notice deadline: _____

APPENDIX C

# Contract Review Form

One form per provider. Tick what you have confirmed in writing.

**Provider:** _____ **Service:** _____ **Contract date / term:** _____

- ☐ Term, renewal and cancellation deadline noted
- ☐ Notice period is two months or less (maximum for starting a switch)
- ☐ Early-termination terms noted: fee, balance or lost discounts
- ☐ Price-change terms noted, with my right to leave
- ☐ Contract states my right to switch to another provider or on-premises
- ☐ Transition period stated (maximum 30 calendar days) and the rule for longer periods
- ☐ Exhaustive list of exportable data and digital assets included
- ☐ Exclusions listed (provider-internal data, trade secrets) and acceptable
- ☐ Export formats named, with a link to the format and interface information
- ☐ Data retrieval period stated (at least 30 calendar days after transition)
- ☐ Erasure of my data after retrieval, with written confirmation
- ☐ Switching charges stated, now and from 12 January 2027
- ☐ Support terms for the switch, and what costs extra
- ☐ Jurisdiction of the infrastructure and measures against unlawful access published
- ☐ Data processing agreement signed, sub-processors and locations listed
- ☐ Availability promise and compensation understood

**Gaps to raise with the provider:**

_____

**Questions to put in writing before you sign or renew**

1. Which parts of Chapter VI of the Data Act apply to this service, and which do not?
2. Was this contract updated for the Data Act, and when?
3. What is the full list of exportable data, and in which formats?
4. What will you charge to switch before and after 12 January 2027?
5. What is the process and the contact for a switching request?

APPENDIX D

# Switching Request Letter

Adapt this to your contract. Send it in a way that creates a record, such as email to the contact named in the contract, with the account owner copied. Keep a copy and the reply. This is a template, not legal advice.

**Subject:** Notice to initiate switching: account [number]

Dear [Provider],

We are customers of [service name] under account [number], contract dated [date]. This letter is notice under clause [number] of the contract that we wish to initiate the switching process in accordance with the contract and Chapter VI of Regulation (EU) 2023/2854 (the Data Act).

We intend to switch to [another provider / our own on-premises systems / erase our exportable data only]. Please confirm in writing, within 10 working days:

1. the date this notice is received and the date the notice period ends;
2. the date the transitional period begins and ends, and, if you consider 30 calendar days technically unfeasible, the reasons and the alternative period you propose;
3. the list of exportable data and digital assets, the formats and interfaces available, and any known restrictions;
4. the switching charges, if any, that will apply to this request, and how they are calculated;
5. the length of the data-retrieval period, the date full erasure will take place and how you will confirm it, including backups and sub-processors; and
6. the named contact for this switch.

Please continue the service without interruption through the transition. We would like to start with a test export of [description] by [date].

Kind regards, [Name, role, business]

APPENDIX E

# Test Export and Verification Worksheet

**Service:** _____ **Date of test:** _____ **Who ran it:** _____

### 1. What was exported

| Item | Source count | Export count | Match? |
|---|---|---|---|
| Records (e.g. customers) | | | |
| Records (e.g. orders) | | | |
| Files and attachments | | | |
| Users and roles | | | |
| History or audit log | | | |

### 2. Five checks

- ☐ **Complete:** counts and attachments match
- ☐ **Correct:** ten sampled records match the source field by field
- ☐ **Connected:** one order traced to customer, invoice and attachment
- ☐ **Compliant:** personal data and consent records handled as intended
- ☐ **Current:** the export is fresh and its date is recorded

### 3. Format check

- Format used: _____ Opens in a standard program? Yes / No
- Dates, currencies and accents correct? Yes / No
- Import trial run in: _____ Result: _____

### 4. Findings and next step

_____

_____

**5. Migration security checklist**

- ☐ Signed DPAs with old and new providers
- ☐ Transfer channel encrypted; no email attachments
- ☐ Named people only; multi-factor authentication on
- ☐ Every place the data will touch is listed
- ☐ Temporary copies have a deletion date: _____
- ☐ Breach contact and decision-maker named: _____
- ☐ Written confirmation of deletion requested from old provider

APPENDIX F

# 30-Day Exit Tracker

Tick each day when done and write the date.

| Day | Task | Done | Date |
|---|---|---|---|
| 1 | Name the owner and the reason | | |
| 2 | Inventory services (Appendix A) | | |
| 3 | Map data in five categories | | |
| 4 | Read the contract (Appendix C) | | |
| 5 | Estimate the cost (Appendix B) | | |
| 6 | List risks and dependencies | | |
| 7 | Choose the exit route | | |
| 8 | Shortlist two destinations | | |
| 9 | Run a test export | | |
| 10 | Run a test import | | |
| 11 | Decide what to migrate and what to delete | | |
| 12 | Sign agreements and check the new exit terms | | |
| 13 | Write the runbook | | |
| 14 | Go or no-go review | | |
| 15 | Give written notice (Appendix D) | | |
| 16 | Build the destination | | |
| 17 | Migrate a full copy and check it | | |

| Day | Task | Done | Date |
|---|---|---|---|
| 18 | Rebuild key integrations | | |
| 19 | Pilot with real users | | |
| 20 | Fix, then freeze | | |
| 21 | Rehearse the cutover | | |
| 22 | Tell staff, customers and suppliers | | |
| 23 | Cutover | | |
| 24 | Watch closely | | |
| 25 | Verify on the live system | | |
| 26 | Retrieve final exports and history | | |
| 27 | Delete temporary copies | | |
| 28 | Request deletion confirmation; close accounts | | |
| 29 | Update records and notices | | |
| 30 | Review and schedule the next test | | |

# Glossary

**API.** A way for one piece of software to ask another for data or actions. Often the best way to export a lot of data.

**Controller.** The organisation that decides why and how personal data is used. Usually you.

**Cutover.** The moment you stop using the old service and start using the new one.

**Data Act.** Regulation (EU) 2023/2854. Chapter VI covers switching between data processing services.

**Data egress.** Moving data out of a provider's service. Charges for this have been a common source of cost.

**Data processing service.** The Data Act's term for cloud and similar online services, including infrastructure, platform and software.

**Digital assets.** Elements such as applications, settings and access rights that you have the right to use independently of the provider's contract.

**DPA (data processing agreement).** The contract between a controller and a processor required by GDPR Article 28.

**Exportable data.** Input and output data, including metadata, generated by your use of a service, apart from the exclusions the law and contract allow.

**Functional equivalence.** Maintaining a comparable level of functionality after switching between similar infrastructure services.

**IaaS, PaaS, SaaS.** Infrastructure, platform and software as a service: rented servers, a platform to build on, and finished online software.

**Lock-in.** The cost, effort or risk of switching high enough to keep you with a provider.

**Notice period.** The time you must give a provider before switching starts. The Data Act sets a two-month maximum.

**Personal data breach.** A security incident leading to accidental or unlawful loss, alteration, disclosure of or access to personal data.

**Processor.** An organisation that handles personal data on a controller's behalf. Your cloud provider is usually one.

**Retrieval period.** The time after the transition in which you can still get your data. The minimum is 30 calendar days.

**Sub-processor.** A processor engaged by another processor, such as a hosting company used by your software provider.

**Switching charges.** Charges for the act of switching. Reduced until 12 January 2027, not allowed from that date.

**Transition period.** The time during which the provider carries out the switch. The maximum is 30 calendar days unless an alternative is justified.

# A Note on GDPRGard.eu

GDPRGard publishes free tools, guides and articles to help small businesses understand data-protection duties in plain English, including how to map data sharing, handle a data breach, review processors and respond to rights requests. Visit **gdprgard.eu** for current guidance, templates and updates to the topics in this book.

# About the Author

**Zirlandia Milkovic** writes practical, plain-English guides on data protection, cyber-security, AI and building a business with confidence. She believes technology should give small businesses more control, not less, and that nobody should need a technical degree to understand their rights or protect their customers.

She is the author of a series of business guides, including *GDPR Made Simple for Women Founders*, and her work focuses on turning complex rules and fast-moving technology into simple steps, checklists and templates that busy people can actually use. She is also behind **GDPRGard**, a growing collection of free GDPR tools, guides and articles for small businesses, available at gdprgard.eu.

*The Cloud Exit Plan* grew out of a simple observation: businesses move everything to the cloud and almost never ask how they would leave. If this guide helped you, an honest review where you bought it helps other readers find it.

Visit **gdprgard.eu** for free tools, articles and updates.

# Notes and Sources

Research cut-off: 11 November 2026. Items marked (read) were opened directly; others were seen through search summaries or secondary coverage, or rest on the author's working knowledge, and should be checked against the original before you rely on them.


1. Regulation (EU) 2023/2854 of the European Parliament and of the Council of 13 December 2023 (the Data Act), OJ L, 22.12.2023. Article 50(2): applies from 12 September 2025. Article 23 (scope and obstacles to switching) and the Act's scope provisions covering providers serving customers in the Union. Article text read on the Springlex mirror (read); the EUR-Lex page could not be read by the research tool, so check wording against the Official Journal.
2. European Commission, Digital Strategy, "Data Act explained" fact page (last updated 15 December 2025): switching charges, including data egress charges, entirely removed from 12 January 2027; reduced charges from 11 January 2024; role of competent authorities and the data coordinator; functional equivalence for infrastructure services and open interfaces and machine-readable export for other services (read).
3. Data Act, Article 25: written contract; switching on request after a maximum notice period of two months; maximum transitional period of 30 calendar days; provider assistance, business continuity, information on continuity risks and security during the transition; exit-strategy support; exhaustive lists of portable data and exempted provider-internal data; minimum 30-day retrieval period; erasure; switching charges; 14 working days to notify technical unfeasibility with an alternative period of no more than seven months; customer's right to extend the transitional period once (read, Springlex mirror).
4. Data Act, Articles 26 (information and online register), 27 (good faith), 28 (jurisdiction and international access transparency), 29 (switching charges: reduced until 12 January 2027, none thereafter; pre-contract disclosures), 30 (technical aspects: functional equivalence, open interfaces free of charge, structured machine-readable export), 31 (custom-built services and testing versions) and 34(2) (data egress charges for in-parallel use, limited to the costs incurred) (read, Springlex mirror).
5. Travers Smith, "The Data Act's changes to cloud services contracts: tipping the scales on switching", 8 June 2025: definitions of exportable data and digital assets; charges that remain possible after 2027; limited early-termination fees; commentary on enforcement and penalties at that date (read; dated before today, so later developments are not reflected).

6. Pinsent Masons, Out-Law guide to the switching and porting rules in the EU Data Act: free-tier customers and the absence of a small-provider exemption in the switching rules; commentary on enforcement routes (summary-level reading only; check the original).
7. Regulation (EU) 2016/679 (GDPR), Articles 5, 20, 28 (including 28(3)(g)), 30, 32, 33, 34 and Chapter V on international transfers (working knowledge; read the text).
8. Regulation (EU) 2022/2554 (DORA) sets specific ICT third-party risk and exit-strategy requirements for financial entities (working knowledge; not covered in this book).
9. The European Commission's Digital Omnibus proposal to amend parts of the Data Act is referred to on the Commission's fact page. The author did not confirm its content for the switching rules or its status at the research date.

Not verified by the author: the exact current features, export formats and prices of any named or unnamed provider; whether the date that counts for the end of switching charges is notice, completion of the switch or the imposition of the charge; programmes under which individual providers waive transfer fees for departing customers; the current status of the European Commission's non-binding model contractual terms and standard contractual clauses for cloud contracts; the content of national enforcement laws in each Member State; and the Digital Omnibus changes. Marta's studio and Dario's webshop and all figures in their examples are fictional.